

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-10

**REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY
LICENSE NO. 017843 – WASHINGTON MOVERS, INC.**

**APPENDIX TO THE OPENING BRIEF
OF THE
BUREAU OF ENFORCEMENT**

**Brian L. Troiano, Deputy Director
Brenda Doty, Trial Attorney**

**BUREAU OF ENFORCEMENT
FEDERAL MARITIME COMMISSION
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Suite 900
Washington, D.C. 20573
(202) 523-5783**

May 5, 2017

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BOE EXHIBIT 32

000002

MSC MEDITERRANEAN SHIPPING COMPANY S.A.

12-14 Chemin Rieu - 1208 Geneva - Switzerland

Service Contract No.13-306WW

1. ORIGIN(S):

USA

2. DESTINATION(S):

GTBEA: Egypt, Lebanon, Cyprus, Ukraine, Russia, Romania, Georgia, Greece, Turkey, Algeria, Malta, Lybia, Morocco, Sierra Leone, Cameron, Benin, Togo

IPMR: Saudi Arabia, United Arab Emirates, Qatar, Kuwait, Bahrain, Iraq, Djibouti, Pakistan

WCSA: Chile

3. COMMODITY(IES): CARS AND PARTS

HHGDS

4. MINIMUM VOLUME COMMITMENT ("MVC") OR PORTION:

GTBEA: 225 TEUS

WCSA: 50 TEUS

IPMR: 75 TEUS

TOTAL MVC: 350 TEUS

5. RATES AND CHARGES:

See Appendix



13-306WW-000-2013

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(a) In addition to the rates stated in this Contract, shipments made hereunder shall be subject to the rules, regulations, terms, conditions, surcharges, general rate increases, and all other provisions listed in Carrier's tariff(s) applicable to carriage between the relevant port of loading and the port of destination and in effect at the time of shipment including but not limited to any fees, costs, levies or charges whatsoever arising out of or related to clean air programs, and to the terms and conditions of Carrier's bill of lading or sea waybill, as the case may be, and all said provisions are hereby incorporated in this Contract by reference.

(b) The rates in this Contract shall be subject to increase by the amount of any general rate increase published in the Carrier's rate tariff applicable to the Trade(s) covered by this Contract. Said increase shall be applied by the Carrier automatically and Shipper consents to Carrier filing an amendment to this Contract with the Federal Maritime Commission reflecting said increase, without any further signature or consent of the Shipper. If rates are increased through application of this paragraph, Shipper may in its discretion request a negotiation in good faith regarding a reduction of the increase published by the Carrier. If a signature, in this case necessary, is delayed by more than five (5) business days, the Carrier can and will assess all shipments at the applicable rate based on the general rate increase as published in its tariff from the time same is into effect.

(c) If during the term of this Contract, security related charges are published by Carrier in the governing tariff(s) applicable to this Contract, covering such as, but not limited to, security charges as may be introduced at ports/ terminals covered by this Contract, such tariff published security related charges will apply in addition to all other conditions and provisions set forth in this Contract.

Contract does not include any ISPS Security Charges, which do not form PART of the freight, and which are additionally payable as levied locally by the loading and discharging port terminals.

(d) If during the term of this Contract, Carrier changes its policy and no longer provides chassis, it shall have the right to cease providing chassis after a ninety (90) days notice to the Shipper. In the event that Carrier exercises its right to stop providing chassis, Shipper shall have the right to terminate this Contract as at the expiry of the notice or earlier by agreement. Such right to terminate shall be the sole remedy of the Shipper for Carrier's exercise of its right to stop providing chassis.

(e) Third Party Costs Clause

Notwithstanding any provision herein to the contrary whatsoever, where the Carrier is subject to extra or increased costs in the performance of this Contract which arise:

1. From facts or circumstances which were not within the contemplation of the parties at the time this Contract was made; and

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2. The extra or additional costs are raised by a third party, subcontractor or company used by the Carrier in the performance of this Contract;

The Carrier shall be entitled to add the extra or additional costs to the total costs invoiced to the Customer and they shall apply as if the said extra or additional costs had always formed part of this Contract. The Carrier shall, if requested, provide documents in support of the extra or additional costs.

(f) Shipments hereunder moving to and/or from an inland destination and/or origin shall be subject to the applicable inland portion published in the relevant Carrier tariff at the time of shipment, except as otherwise expressly provided herein.

(g) Carrier shall provide regularly scheduled sailings and space aboard its vessels for ___ TEUs per sailing, sufficient to accommodate Shipper's volume commitment reasonably spread over the Contract period.

(h) For purposes of this Contract, a container of 20' external length shall constitute one TEU, a container of 40' external length (including a 40' high-cube container) shall constitute one FEU or two TEUs.

6. CERTIFICATION OF SHIPPER STATUS:

Shipper hereby certifies its status as (check only one of the following):

- A. Owner of the cargo ____;
B. A shippers' association____; or
C. A non-vessel operating common carrier ("NVOCC") X .

If status is C above, Shipper shall provide Carrier with evidence that Shipper and any and all of its affiliates authorized to utilize this Contract have published a tariff and provided the U.S. Federal Maritime Commission ("FMC") with the financial security required by its regulations. If status is B above, Shipper shall provide Carrier with a statement that none of the members of the shippers' associations participating in this Contract are NVOCCs or, if any of the members participating in this Contract are NVOCCs, with evidence that such members have published tariffs and provided the FMC with the financial security required by its regulations. Shipper shall be under a continuing obligation to report any change in its status, or the status of any of its affiliates or members, to Carrier.

If Shipper fails to comply with the provisions of this certification, any shipments in the possession of Carrier at the time such failure is discovered may be returned to or made available to Shipper and any and all liabilities, attorneys' fees and expenses incurred by Carrier in connection with the shipment shall be for Shipper's account and constitute a lien on the cargo and any sub-freights due and owing.

Shipper shall be liable to Carrier for all liabilities, attorneys' fees, civil penalties and expenses incurred by Carrier as a result of Shipper's failure to adhere to this certification.

7. CONTRACT RECORDS:

FMC requests for service contract records should be addressed to Miss Lily Hennemann, c/o MSC, 12-14 Chemin Rieu, 1208 Geneva, Switzerland, telephone number 41-22-703-8888

8. DURATION (TERM):

Effective : 02nd August 2013
Effective Through: 01st August 2014

9. PROVISIONS/NOTES/EXCEPTIONS:

9 (a) Use of Sea Waybills instead of Bills of Lading (When Applicable)

In consideration of Carrier issuing, at the Shipper's request, sea waybill(s) instead of bill(s) of lading for the contract of carriage of the cargo, the Shipper hereby indemnifies Carrier for all and any claims, losses, costs, expenses and liabilities of any nature whatsoever that arise in consequence of the use of a sea waybill instead of a bill of lading. The Shipper further undertakes to ensure that the ultimate consignee of the cargo receives a legible copy of, by fax or e-mail, and agrees to abide by, the terms, conditions, exceptions and limitations contained in the Carrier sea waybill.

Without limitation the indemnity shall include where:

- The consignee refuses to abide by the terms and conditions contained in the sea waybill;
- There is a claim for wrongful delivery against Carrier even though Carrier has delivered the cargo to the consignee named in the sea waybill or to the consignee to whom the Shipper, directly or by its agents or subcontractors, has directed the cargo should be delivered; and
- The consignee refuses to pay any additional charges that the Shipper has agreed will apply to the carriage.

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9 (b) Verification of shipments

Shipment records maintained to support the performance of this Contract will be copies of bills of lading.

9 (c) Confidentiality

This Contract is to be kept CONFIDENTIAL and is not to be reported by Carrier /Shipper or any of their members/affiliates.

9 (d) Arbitration and Applicable Law

Should any dispute arise out of this Contract, the matter in dispute shall be referred to three persons at New York, one to be appointed by each of the parties hereto, and the third by the two so chosen; their decision or that of any two of them shall be final.

This Contract shall be subject to the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, and shall otherwise be construed and governed by the laws of the State of New York.

9 (e) Non-Performance

(1) In the event that Carrier fails to provide the minimum amount of space set forth in Article 5(g) above on any sailing for reasons other than those set forth in Article 9(e)(3) hereof, then Shipper shall be entitled to additional space on one or more subsequent sailings during the term of this Contract equal to the amount of space Carrier was unable to provide. In the event Carrier fails to provide all or part of such additional space prior to the expiration of this Contract, then Shipper shall be entitled to a reduction in its minimum cargo commitment equal to the amount of such additional space that Carrier was unable to provide. The provision of additional space and the reduction of the minimum cargo commitment shall constitute Shipper's sole remedies for breach of this Contract by Carrier. Under no circumstances shall Carrier be liable for any indirect, consequential, punitive or other damages in connection with this Contract.

(2) In the event Shipper, for reasons other than those set forth in Article 9(e)(3) hereof, fails to meet the minimum cargo commitment set forth in Article 4 hereof or any portion thereof (or such cargo commitment as it may have been adjusted pursuant to this Article 9(e), whichever is less), then Shipper shall be liable for and agrees to pay to Carrier liquidated damages of \$250 per TEU for each TEU by which the amount of cargo is less than the minimum cargo commitment. Such liquidated damages shall be the sole remedy of Carrier for Shipper's failure to fulfill the minimum cargo commitment and no further liability shall be incurred by Shipper as a result of such failure.

(3) Notwithstanding any other provisions of this Contract, and to the extent Carrier or Shipper fails to meet any obligations imposed hereunder due to force majeure, the performance of this Contract shall be deemed to have been frustrated and no cause of action for breach or liability hereunder shall arise as a consequence thereof. For purposes hereof, the term "force majeure" shall mean and include, without reservation or limitation, strikes, lockouts or exceptional circumstances arising from the threat thereof; Act of God, acts of terrorism or threatened acts of terrorism, acts of State or Public Enemy, including but not limited to war, restraints of princes, riots, civil disorder and insurrection, embargo or other disruption or interference with trade; marine disaster, fire or other casualty.

9 (f) Definition of Charges (Demurrage, Storage, Detention, Per Diem) in the USA

DEMURRAGE

A charge assessed against the cargo remaining inside the USA Terminal facilities after the expiration of free time, for the usage of its land.

Free Time & Charges

As per applicable Tariff.

STORAGE

A charge assessed against the cargo remaining inside the USA Rail Road facilities and / or Container Yards after the expiration of free time, for the usage of its land.

Free Time & Charges:

As per applicable Tariff.

DETENTION

A charge assessed against the cargo remaining inside the USA Terminal or Rail Road facilities or Container Yard after the expiration of free time, for the usage of Carrier's (full) equipment.

Free Time & Charges:

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As per Steamship line's Tariff

PER DIEM

A charge assessed, after the expiration of free time outside of the USA Terminal or Rail Road or Container Yard facilities, for the usage of Carrier's equipment (full or empty) until it's return to Carrier's custody at the point of pick up

Free Time & Charges:

As per Steamship Line's Tariff & Interchange Agreement

10. CONTRACT PARTIES:

The parties (Parties) are (a) MSC Mediterranean Shipping Company S.A (Carrier) and (b) the shipper/consignee whose name and address is below, and (c) any other shippers and/or consignees listed (all of which shippers and consignees are called Shippers).

Carrier:

MSC Mediterranean Shipping Co., S.A.
12-14 Chemin Rieu, 1208 Geneva, Switzerland



Signature: -----

By: Pasquale Formisano

Title: Director

Shipper:

WASHINGTON MOVERS, INC.
7913 Cryden Way, District Heights, USA

Signature: -----

By: Sam Ghanem

Title: President

Affiliates: (if any)

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MSC MEDITERRANEAN SHIPPING COMPANY S.A.

12-14 Chemin Rieu - 1208 Geneva - Switzerland

Service Contract No.13-306WW

1. ORIGIN(S):

USA

2. DESTINATION(S):

GTBEA: Egypt, Lebanon, Cyprus, Ukraine, Russia, Romania, Georgia, Greece, Turkey, Algeria, Malta, Libya, Morocco, Sierra Leone, Cameroon, Benin, Togo

IPMR: Saudi Arabia, United Arab Emirates, Qatar, Kuwait, Bahrain, Iraq, Djibouti, Pakistan

WCSA: Chile

3. COMMODITY(IES): CARS AND PARTS

HHGDS

GTBEA: FAK (AMN 1)

4. MINIMUM VOLUME COMMITMENT ("MVC") OR PORTION:

GTBEA: 225 TEUS

WCSA: 50 TEUS

IPMR: 75 TEUS

TOTAL MVC: 350 TEUS

5. RATES AND CHARGES:

See Appendix



13-306WW-002-2013

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(a) In addition to the rates stated in this Contract, shipments made hereunder shall be subject to the rules, regulations, terms, conditions, surcharges, general rate increases, and all other provisions listed in Carrier's tariff(s) applicable to carriage between the relevant port of loading and the port of destination and in effect at the time of shipment including but not limited to any fees, costs, levies or charges whatsoever arising out of or related to clean air programs, and to the terms and conditions of Carrier's bill of lading or sea waybill, as the case may be, and all said provisions are hereby incorporated in this Contract by reference.

(b) The rates in this Contract shall be subject to increase by the amount of any general rate increase published in the Carrier's rate tariff applicable to the Trade(s) covered by this Contract. Said increase shall be applied by the Carrier automatically and Shipper consents to Carrier filing an amendment to this Contract with the Federal Maritime Commission reflecting said increase, without any further signature or consent of the Shipper. If rates are increased through application of this paragraph, Shipper may in its discretion request a negotiation in good faith regarding a reduction of the increase published by the Carrier. If a signature, in this case necessary, is delayed by more than five (5) business days, the Carrier can and will assess all shipments at the applicable rate based on the general rate increase as published in its tariff from the time same is into effect.

(c) If during the term of this Contract, security related charges are published by Carrier in the governing tariff(s) applicable to this Contract, covering such as, but not limited to, security charges as may be introduced at ports/ terminals covered by this Contract, such tariff published security related charges will apply in addition to all other conditions and provisions set forth in this Contract.

Contract does not include any ISPS Security Charges, which do not form PART of the freight, and which are additionally payable as levied locally by the loading and discharging port terminals.

(d) If during the term of this Contract, Carrier changes its policy and no longer provides chassis, it shall have the right to cease providing chassis after a ninety (90) days notice to the Shipper. In the event that Carrier exercises its right to stop providing chassis, Shipper shall have the right to terminate this Contract as at the expiry of the notice or earlier by agreement. Such right to terminate shall be the sole remedy of the Shipper for Carrier's exercise of its right to stop providing chassis.

(e) Third Party Costs Clause

Notwithstanding any provision herein to the contrary whatsoever, where the Carrier is subject to extra or increased costs in the performance of this Contract which arise:

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1. From facts or circumstances which were not within the contemplation of the parties at the time this Contract was made; and
2. The extra or additional costs are raised by a third party, subcontractor or company used by the Carrier in the performance of this Contract;

The Carrier shall be entitled to add the extra or additional costs to the total costs invoiced to the Customer and they shall apply as if the said extra or additional costs had always formed part of this Contract. The Carrier shall, if requested, provide documents in support of the extra or additional costs.

(f) Shipments hereunder moving to and/or from an inland destination and/or origin shall be subject to the applicable inland portion published in the relevant Carrier tariff at the time of shipment, except as otherwise expressly provided herein.

(g) Carrier shall provide regularly scheduled sailings and space aboard its vessels for ___ TEUs per sailing, sufficient to accommodate Shipper's volume commitment reasonably spread over the Contract period.

(h) For purposes of this Contract, a container of 20' external length shall constitute one TEU, a container of 40' external length (including a 40' high-cube container) shall constitute one FEU or two TEUs.

6. CERTIFICATION OF SHIPPER STATUS:

Shipper hereby certifies its status as (check only one of the following):

- A. Owner of the cargo _____;
- B. A shippers' association _____; or
- C. A non-vessel operating common carrier ("NVOCC") X .

If status is C above, Shipper shall provide Carrier with evidence that Shipper and any and all of its affiliates authorized to utilize this Contract have published a tariff and provided the U.S. Federal Maritime Commission ("FMC") with the financial security required by its regulations. If status is B above, Shipper shall provide Carrier with a statement that none of the members of the shippers' associations participating in this Contract are NVOCCs or, if any of the members participating in this Contract are NVOCCs, with evidence that such members have published tariffs and provided the FMC with the financial security required by its regulations. Shipper shall be under a continuing obligation to report any change in its status, or the status of any of its affiliates or members, to Carrier.

If Shipper fails to comply with the provisions of this certification, any shipments in the possession of Carrier at the time such failure is discovered may be returned to or made available to Shipper and any and all liabilities, attorneys' fees and expenses incurred by Carrier in connection with the shipment shall be for Shipper's account and constitute a lien on the cargo and any sub-freights due and owing.

Shipper shall be liable to Carrier for all liabilities, attorneys' fees, civil penalties and expenses incurred by Carrier as a result of Shipper's failure to adhere to this certification.

7. CONTRACT RECORDS:

FMC requests for service contract records should be addressed to Miss Lily Hennemann, c/o MSC, 12-14 Chemin Rieu, 1208 Geneva, Switzerland, telephone number 41-22-703-8888

8. DURATION (TERM):

Effective : 02nd August 2013

Effective Through: 01st August 2014

9. PROVISIONS/NOTES/EXCEPTIONS:

9 (a) Use of Sea Waybills instead of Bills of Lading (When Applicable)

In consideration of Carrier issuing, at the Shipper's request, sea waybill(s) instead of bill(s) of lading for the contract of carriage of the cargo, the Shipper hereby indemnifies Carrier for all and any claims, losses, costs, expenses and liabilities of any nature whatsoever that arise in consequence of the use of a sea waybill instead of a bill of lading. The Shipper further undertakes to ensure that the ultimate consignee of the cargo receives a legible copy of, by fax or e-mail, and agrees to abide by, the terms, conditions, exceptions and limitations contained in the Carrier sea waybill.

Without limitation the indemnity shall include where:

- The consignee refuses to abide by the terms and conditions contained in the sea waybill;
- There is a claim for wrongful delivery against Carrier even though Carrier has delivered the cargo to the consignee named in the sea waybill or to the consignee to whom the Shipper, directly or by its agents or subcontractors, has directed the cargo should be delivered; and
- The consignee refuses to pay any additional charges that the Shipper has agreed will apply to the carriage.

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9 (b) Verification of shipments

Shipment records maintained to support the performance of this Contract will be copies of bills of lading.

9 (c) Confidentiality

This Contract is to be kept CONFIDENTIAL and is not to be reported by Carrier /Shipper or any of their members/affiliates.

9 (d) Arbitration and Applicable Law

Should any dispute arise out of this Contract, the matter in dispute shall be referred to three persons at New York, one to be appointed by each of the parties hereto, and the third by the two so chosen; their decision or that of any two of them shall be final.

This Contract shall be subject to the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998, and shall otherwise be construed and governed by the laws of the State of New York.

9 (e) Non-Performance

(1) In the event that Carrier fails to provide the minimum amount of space set forth in Article 5(g) above on any sailing for reasons other than those set forth in Article 9(e)(3) hereof, then Shipper shall be entitled to additional space on one or more subsequent sailings during the term of this Contract equal to the amount of space Carrier was unable to provide. In the event Carrier fails to provide all or part of such additional space prior to the expiration of this Contract, then Shipper shall be entitled to a reduction in its minimum cargo commitment equal to the amount of such additional space that Carrier was unable to provide. The provision of additional space and the reduction of the minimum cargo commitment shall constitute Shipper's sole remedies for breach of this Contract by Carrier. Under no circumstances shall Carrier be liable for any indirect, consequential, punitive or other damages in connection with this Contract.

(2) In the event Shipper, for reasons other than those set forth in Article 9(e)(3) hereof, fails to meet the minimum cargo commitment set forth in Article 4 hereof or any portion thereof (or such cargo commitment as it may have been adjusted pursuant to this Article 9(e), whichever is less), then Shipper shall be liable for and agrees to pay to Carrier liquidated damages of \$250 per TEU for each TEU by which the amount of cargo is less than the minimum cargo commitment. Such liquidated damages shall be the sole remedy of Carrier for Shipper's failure to fulfill the minimum cargo commitment and no further liability shall be incurred by Shipper as a result of such failure.

(3) Notwithstanding any other provisions of this Contract, and to the extent Carrier or Shipper fails to meet any obligations imposed hereunder due to force majeure, the performance of this Contract shall be deemed to have been frustrated and no cause of action for breach or liability hereunder shall arise as a consequence thereof. For purposes hereof, the term "force majeure" shall mean and include, without reservation or limitation, strikes, lockouts or exceptional circumstances arising from the threat thereof; Act of God, acts of terrorism or threatened acts of terrorism, acts of State or Public Enemy, including but not limited to war, restraints of princes, riots, civil disorder and insurrection, embargo or other disruption or interference with trade; marine disaster, fire or other casualty.

9 (f) Definition of Charges (Demurrage, Storage, Detention, Per Diem) in the USA

DEMURRAGE

A charge assessed against the cargo remaining inside the USA Terminal facilities after the expiration of free time, for the usage of its land.

Free Time & Charges

As per applicable Tariff.

STORAGE

A charge assessed against the cargo remaining inside the USA Rail Road facilities and / or Container Yards after the expiration of free time, for the usage of its land.

Free Time & Charges:

As per applicable Tariff.

DETENTION

A charge assessed against the cargo remaining inside the USA Terminal or Rail Road facilities or Container Yard after the expiration of free time, for the usage of Carrier's full equipment.

Free Time & Charges:
As per Steamship line's Tariff

PER DIEM

A charge assessed, after the expiration of free time outside of the USA Terminal or Rail Road or Container Yard facilities, for the usage of Carrier's equipment (full or empty) until it's return to Carrier's custody at the point of pick up

Free Time & Charges:
As per Steamship Line's Tariff & Interchange Agreement

10. CONTRACT PARTIES:

The parties (Parties) are (a) MSC Mediterranean Shipping Company S.A (Carrier) and (b) the shipper/consignee whose name and address is below, and (c) any other shippers and/or consignees listed (all of which shippers and consignees are called Shippers).

Carrier:

MSC Mediterranean Shipping Co., S.A.
12-14 Chemin Rieu, 1208 Geneva, Switzerland



Signature: ----- AMN 2

By: Pasquale Formisano
Title: Director

Shipper:

WASHINGTON MOVERS, INC.
7913 Cryden Way, District Heights, USA

Signature: ----- AMN 2

By: Sam Ghanem
Title: President

Affiliates: (if any)

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BOE EXHIBIT 33

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Race

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Sex

1 Result for search **sam ghanem**

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SAM RAFIC GHANEM

Register Number: 57591-037

Age: 47
Race: White
Sex: Male

Released On: 01/20/2017

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BOE EXHIBIT 34

COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

Previous §	Revised §	Language Prior to Dec. 9, 2015	Language On and After Dec. 9, 2015
515.4(b)(2)	515.4(b)	(2) Each licensed ocean transportation intermediary will be held strictly responsible for the acts or omissions of any of its employees or agents rendered in connection with the conduct of its business.	A licensed ocean transportation intermediary shall be fully responsible for the acts and omissions of any of its employees and agents that are performed in connection with the conduct of such licensee's business.
515.11(b)	515.11(b)	(b) Qualifying individual. The following individuals must qualify the applicant for a license: (1) Sole proprietorship. The applicant sole proprietor. (2) Partnership. At least one of the active managing partners. (3) Corporation. At least one of the active corporate officers. (4) Limited liability company. One of the members or managers, or an individual in an equivalent position in the LLC as expressly set forth in the LLC operating agreement.	No change in language.
515.12(d)	515.12(e)	(d) Changes in fact. Each applicant and each licensee shall submit to the Commission, in duplicate, an amended Form FMC-18 Rev. advising of any changes in the facts submitted in the original application, within thirty (30) days after such change(s) occur. In the case of an application for a license, any unreported change may delay the processing and investigation of the application and may result in rejection or denial of the application. No fee is required when reporting changes to an application for initial license under this section.	(e) Changes in fact. Each applicant shall promptly advise the Commission of any material changes in the facts submitted in the application. Any unreported change may delay the processing and investigation of the application and result in rejection, closing, or denial of the application.

COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

515.13	515.13	The Commission shall conduct an investigation of the applicant's qualifications for a license. Such investigations may address: (a) The accuracy of the information submitted in the application; (b) The integrity and financial responsibility of the applicant; (c) The character of the applicant and its qualifying individual; and (d) The length and nature of the qualifying individual's experience in handling ocean transportation intermediary duties.	No change in language.
515.14(b)	515.14(b)	(b) To whom issued. The Commission will issue a license only in the name of the applicant, whether the applicant is a sole proprietorship, a partnership, or a corporation. A license issued to a sole proprietor doing business under a trade name shall be in the name of the sole proprietor, indicating the trade name under which the licensee will be conducting business. Only one license shall be issued to any applicant regardless of the number of names under which such applicant may be doing business, and except as otherwise provided in this part, such license is limited exclusively to use by the named licensee and shall not be transferred without prior Commission approval to another person.	(b) To whom issued. The Commission will issue a license only in the name of the applicant, whether the applicant is a sole proprietorship, a partnership, a corporation, or limited liability company. A license issued to a sole proprietor doing business under a trade name shall be in the name of the sole proprietor, indicating the trade name under which the licensee will be conducting business. Only one license shall be issued to any applicant regardless of the number of names under which such applicant may be doing business, and except as otherwise provided in this part, such license is limited exclusively to use by the named licensee and shall not be transferred without prior Commission approval to another person.

COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

515.16	515.16	(a) Grounds. Except for the automatic revocation for termination of proof of financial responsibility under § 515.26, or as provided in 515.25(b), a license may be revoked or suspended after notice and an opportunity for a hearing for any of the following reasons:(1) Violation of any provision of the Act, or any other statute or Commission order or regulation related to carrying on the business of an ocean transportation intermediary;(2) Failure to respond to any lawful order or inquiry by the Commission;(3) Making a materially false or misleading statement to the Commission in connection with an application for a license or an amendment to an existing license;(4) Where the Commission determines that the licensee is not qualified to render intermediary services; or(5) Failure to honor the licensee's financial obligations to the Commission.(b) Notice of revocation. The Commission shall publish on the Commission's Web site www.fmc.gov notice of each revocation.	(a) Grounds. Except for the automatic revocation for termination of proof of financial responsibility under § 515.26, a license may be revoked or suspended after notice and an opportunity for a hearing under the procedures of § 515.17. The notice of revocation or suspension will provide, in detail, a statement of the facts supporting the action. The licensee may request a hearing on the proposed revocation or suspension by submitting to the Commission's Secretary, within twenty (20) days of the date of the notice, a statement of reasons why the license should not be revoked or suspended. Such hearing shall be provided pursuant to the procedures contained in § 515.17. Otherwise, the action regarding the license will become effective. A license may be revoked or suspended for any of the following reasons:(1) Violation of any provision of the Act, or any other statute or Commission order or regulation related to carrying on the business of an ocean transportation intermediary;(2) Failure to respond to any lawful order or inquiry by the Commission;(3) Making a materially false or misleading statement to the Commission in connection with an application for a license or an amendment to an existing license;(4) A Commission determination that the licensee is not qualified to render intermediary services; or(5) Failure to honor the licensee's financial obligations to the Commission.(b) Notice. The Commission shall publish on the Commission's Web site www.fmc.gov notice of each revocation and suspension.
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COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

515.18(a)	515.20(a)	(a) The following changes in an existing licensee's organization require prior approval of the Commission, and application for such status change or license transfer shall be made on Form FMC-18 Rev., filed in duplicate with the Commission's Bureau of Certification and Licensing, and accompanied by the fee required under § 515.5(b)(2):	(a) Licenses. The following changes in an existing licensee's organization require prior approval of the Commission, and application for such status change or license transfer shall be made on Form FMC-18, filed with the Commission's Bureau of Certification and Licensing, and accompanied by the fee required under § 515.5(c):
515.18(a)(1)	515.20(a)(1)	(1) Transfer of a corporate license to another person;	No change in language.
515.18(a)(2)	515.20(a)(2)	(2) Change in ownership of a sole proprietorship;	No change in language.
515.18(a)(3)		(3) Addition of one or more partners to a licensed partnership;	Language not specifically carried forward; subsumed by new 515.20(a)(3).
515.18(a)(4)	515.20(a)(3)	(4) Any change in the business structure of a licensee from or to a sole proprietorship, partnership, or corporation, whether or not such change involves a change in ownership;	(3) Any change in the business structure of a licensee from or to a sole proprietorship, partnership, limited liability company, or corporation, whether or not such change involves a change in ownership;
515.18(a)(5)	515.20(a)(4)	(5) Any change in a licensee's name; or	No change in language.
515.18(a)(6)	515.20(a)(5)	(6) Change in the identity or status of the designated QI, except as described in paragraphs (b) and (c) of this section.	No change in language.

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COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

515.18(c)	515.20(c)	(c) Operation after retirement, resignation, or death of qualifying individual. When a partnership, or corporation has been licensed on the basis of the qualifications of one or more of the partners or officers thereof, and such qualifying individuals no longer serve in a full-time, active capacity with the firm, the licensee shall report such change to the Commission within 30 days. Within the same 30-day period, the licensee shall furnish to the Commission the name(s) and detailed intermediary experience of any other active partner(s) or officer(s) who may qualify the licensee. Such qualifying individual(s) must meet the applicable requirements set forth in § 515.11(a). The licensee may continue to operate as an ocean transportation intermediary while the Commission investigates the qualifications of the newly designated partner or officer.	(c) Operation after retirement, resignation, or death of QI. When a partnership, LLC, or corporation has been licensed on the basis of the qualifications of one or more of the partners, members, managers or officers thereof, and the QI no longer serves as a full-time employee with the OTI or is no longer responsible for the licensee's OTI activities, the licensee shall report such change to the Commission within thirty (30) days. Within the same 30-day period, the licensee shall furnish to the Commission the name(s) and detailed intermediary experience of any other active partner(s), member(s), manager(s) or officer(s) who may qualify the licensee. Such QI(s) must meet the applicable requirements set forth in § 515.11(a) through (c). The licensee may continue to operate as an ocean transportation intermediary while the Commission investigates the qualifications of the newly designated partner, member, manager, or officer.
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COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

No previous section	515.20(e)	[No previous language; new section. However, the information designated in new section 515.20(e) was derived in part from former section 515.12(d).]	(e) Other changes. Other changes in material fact of a licensee shall be reported within thirty (30) days of such changes, in writing by mail or email (bcl@fmc.gov) to the Director, Bureau of Certification and Licensing, Federal Maritime Commission, Washington, DC 20573. Material changes include, but are not limited to: Changes in business address; any criminal indictment or conviction of a licensee, QI, or officer; any voluntary or involuntary bankruptcy filed by or naming a licensee, QI, or officer; changes of five (5) percent or more of the common equity ownership or voting securities of the OTI; or, the addition or reduction of one or more partners of a licensed partnership, one or more members or managers of a Limited Liability Company, or one or more branch offices. No fee shall be charged for reporting such changes.
515.21(a)	515.21(a)	(a) Form and amount. Except as otherwise provided in this part, no person may operate as an ocean transportation intermediary unless that person furnishes a bond, proof of insurance, or other surety in a form and amount determined by the Commission to insure financial responsibility. The bond, insurance or other surety covers the transportation-related activities of an ocean transportation intermediary only when acting as an ocean transportation intermediary.	No change in language.
515.31(a)	515.31(a)	(a) License; name and number. Licensees and registrants; names and numbers. Each licensee shall carry on its business only under the name in which its license is issued and only under its license number as assigned by the Commission. When the licensee's name appears on shipping documents, its Commission license or registration number shall also be included.	(a) Licensees and registrants; names and numbers. Each licensee and registrant shall carry on its business only under the name in which it was licensed or registered and only under its license or registration number as assigned by the Commission. When the licensee's or registrant's name appears on shipping documents, its Commission license or registration number shall also be included.

COMPARISON OF RELEVANT PART 515 REGULATIONS BEFORE AND AFTER 2015 AMENDMENTS

515.31(e)	515.31(e)	(e) False or fraudulent claims, false information. No licensee shall prepare or file or assist in the preparation or filing of any claim, affidavit, letter of indemnity, or other paper or document concerning an ocean transportation intermediary transaction which it has reason to believe is false or fraudulent, nor shall any such licensee knowingly impart to a principal, shipper, common carrier or other person, false information relative to any ocean transportation intermediary transaction.	(e) False or fraudulent claims, false information. No OTI shall prepare or file or assist in the preparation or filing of any claim, affidavit, letter of indemnity, or other paper or document concerning an ocean transportation intermediary transaction which it has reason to believe is false or fraudulent, nor shall any such OTI knowingly impart to a principal, shipper, common carrier or other person, false information relative to any ocean transportation intermediary transaction.
515.31(f)	515.31(f)	(f) Errors and omissions of the principal or shipper. A licensee who has reason to believe that its principal or shipper has not, with respect to a shipment to be handled by such licensee, complied with the laws of the United States, or has made any error or misrepresentation in, or omission from, any export declaration, bill of lading, affidavit, or other document which the principal or shipper executes in connection with such shipment, shall advise its principal or shipper promptly of the suspected noncompliance, error, misrepresentation or omission, and shall decline to participate in any transaction involving such document until the matter is properly and lawfully resolved.	(f) Errors and omissions of the principal or shipper. An OTI who has reason to believe that its principal or shipper has not, with respect to a shipment to be handled by such OTI, complied with the laws of the United States, or has made any error or misrepresentation in, or omission from, any export declaration, bill of lading, affidavit, or other document which the principal or shipper executes in connection with such shipment, shall advise its principal or shipper promptly of the suspected noncompliance, error, misrepresentation or omission, and shall decline to participate in any transaction involving such document until the matter is properly and lawfully resolved.

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BOE EXHIBIT 35

EFFECT OF AMENDMENTS TO 46 CFR PART 515 IN THIS PROCEEDING

Ground For Revocation	Description of Supporting Violation	Date of Event Underlying Violation	Governing Regulation At Commencement of Proceeding	Continued Requirement Under Dec. 9, 2015 Amendments	Effect Of Amendment On Violation
Violation of federal statute related to business of OTI	Conviction of Sam Ghanem	August 12, 2015	515.16(a)(1)	Yes 515.16(a)(1)	None
Violation of Commission regulation	Failure to seek approval of name change of licensee	November 7, 2008	515.18(a)(5)	Yes 515.20(a)(4)	None
Violation of Commission regulation	Failure to report arrest of Sam Ghanem	December 21, 2013	515.12(d)	Yes 515.20(e)	None
Violation of Commission regulation	Failure to report change in ownership of licensee	January 1, 2014	515.12(d)	Yes 515.20(e)	None
Violation of Commission regulation	Failure to report change in officers/directors of licensee	January 1, 2014	515.12(d) 515.18(c)	Yes 515.20(c) 515.20(e)	None
Violation of Commission regulation	Failure to report change in status, resignation, and replace QI	January 1, 2014	515.18(a)(6) 515.18(c)	Yes 515.20(a)(5) 515.20(c)	None

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BOE EXHIBIT 36

Form **FMC-18**(Rev. March 1, 1999)
Federal Maritime
Commission**APPLICATION FOR A LICENSE
AS AN OCEAN TRANSPORTATION INTERMEDIARY**

OMB No. 3072-0010

(Expires 02/2005)

Name of corporation, partnership or sole proprietorship:

Washington Movers, Inc.

Firm:

License No. (if any)

Check box:

Trade name(s):

washington movers, inc

Number, street, and room or suite number (If a P.O. box, see instructions.):

8210 CINDERBED RD @LEESVILLE VA 22079

City or town, state, and ZIP code:

703 550 9600703 550 9600

Area code/telephone number:

Area code/fax number:

USA

Country

Is this a new address? ☐ Yes ☒ No

Application for (check as many as applicable and complete the designated Parts for the boxes checked):

- ☐ new license to operate as an ocean freight forwarder (Parts A, C, D, E, F)
☐ new license to operate as a non-vessel operating common carrier (Parts A, C, D, E, F)
☒ new license to operate as both an ocean freight forwarder and a non-vessel operating common carrier (Parts A, C, D, E, F)
☐ area change (including trade name(s)) (Parts B, F)
☐ license transfer (Parts A, D, E, F)
☐ business structure change (Parts A, D, E, F)
- ☐ replacement/additional qualifying individual (Parts C, D, F)
☐ other (please specify) _____

All questions within applicable Parts must be answered or noted "N/A."

PART A**GENERAL**TO BE COMPLETED BY APPLICANTS FOR AN OCEAN TRANSPORTATION INTERMEDIARY LICENSE, BUSINESS
STRUCTURE CHANGE OR LICENSE TRANSFER

1. Applicant is:

☐ A Sole Proprietorship☐ A Partnership☐ A Corporation: Date of Incorporation07/11/1996
Mo. Da. Yr.State of Incorporation virginiaApplicant's Taxpayer Identification Number (TIN) [REDACTED]

Provide proof of legal name. Corporations must attach "Certificate of Good Standing." If applicant uses a trade name(s), attach "Certificate of Registration for Trade Name(s)" or other proof of trade name.

2. Will applicant conduct ocean transportation intermediary services through branch office(s)? ☐ Yes ☒ No If "Yes," how many branch offices? _____ (If "Yes," please complete Part E.)3. Has applicant previously held an ocean freight forwarder or ocean transportation intermediary license issued by the Federal Maritime Commission? ☐ Yes ☒ No (If "Yes," complete items a, b and c.)

a. License No.: _____ b. Date Issued: _____ c. Name Under Which Issued: _____

Mo. Da. Yr.

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4. Describe the current business activities of the applicant (for example, customhouse broker, NVOCC, air freight forwarder, etc.). If inactive, check here ☐.

~~None~~

SIDNEY HILL GROCER, MEATS, STORAGE FACILITY.

5. Does applicant now share or intend to share office space or expenses with any other person or entity? ☐ Yes ☒ No (If "Yes," please identify that person or entity and explain the applicant's relationship with this person or entity.)

6. Is any person or entity, other than the applicant or its principals, providing financial assistance to the applicant, such as advancing funds or collateral for the surety bond? ☐ Yes ☒ No If the answer is yes, please identify the entity: _____

7. Has applicant or any of applicant's partners, officers, directors, or stockholders ever:

- (1) been found in violation of any shipping or bill of lading statute? ☐ Yes ☒ No
 (2) filed or been involved in a bankruptcy proceeding, other than as a claimant? ☒ Yes ☐ No
 (3) been convicted of a crime, other than traffic violations? ☐ Yes ☒ No

If the response to any part of this question is "Yes," please attach an explanation.

PART B

NAME CHANGE

TO BE COMPLETED BY PERSONS REQUESTING APPROVAL OF A NAME CHANGE
OR A CHANGE, ADDITION OR DELETION
OF A TRADE NAME

8. New name of corporation, partnership or sole proprietorship. Provide proof of legal name. Corporations must attach "Certificate of Good Standing".
New name: _____

Trade name(s), if any (attach Certificate of "Registration for Trade Name(s)" or other proof of trade name): _____

PART C

QUALIFYING INDIVIDUAL

TO BE COMPLETED BY APPLICANTS FOR AN OCEAN TRANSPORTATION INTERMEDIARY LICENSE
AND REPLACEMENT/ADDITIONAL QUALIFYING INDIVIDUALS

9. Name of proposed qualifying individual: sam r. ghanem Title: President

10. Is the proposed qualifying individual an:

- Initial Qualifying Individual ☒ ☐
 Additional Qualifying Individual ☐ ☐
 Replacement Qualifying Individual ☐ (Name of individual being replaced: _____)

11. Is the qualifying individual a corporate officer or active partner. ☐ Yes ☐ No (If "Yes," please attach proof of position held.)

12. Length of qualifying ocean transportation intermediary experience (years/months): Five Years

13. Has the proposed qualifying individual(s) ever:

- (1) been submitted as the qualifying individual for another company? ☐ Yes ☒ No
 (2) been found in violation of any shipping or bill of lading statute? ☐ Yes ☒ No
 (3) filed or been involved in a bankruptcy proceeding, other than as a claimant? ☒ Yes ☐ No
 (4) been convicted of a crime, other than traffic violations? ☐ Yes ☒ No

(If the response to any part of this question is "Yes," please explain on separate sheet).

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PART D**OWNERSHIP AND AFFILIATIONS**

TO BE COMPLETED BY APPLICANTS FOR AN OCEAN TRANSPORTATION INTERMEDIARY LICENSE, BUSINESS STRUCTURE CHANGE, LICENSE TRANSFER AND, IF APPLICABLE, CHANGES RESULTING FROM PERSONNEL CHANGES OR REPLACEMENT/ADDITIONAL QUALIFYING INDIVIDUAL

16 Applicant's Ownership, Directors and Stockholders:

<u>Name of Officer/Director/Partner/Stockholder/Business Entity</u>	<u>Title</u>	<u>Percentage of Ownership</u>
Sam R. Ghanem	President	100%

17 Will applicant, its qualifying individual, or any officer, director, partner or stockholder have a beneficial interest in shipments moving in the U.S. foreign commerce? ☐ Yes ☒ No

If "Yes," identify the name and address of each person or entity having a beneficial interest in shipments moving in the U.S. foreign commerce and the nature of such beneficial interest.

18 Is either applicant or its qualifying individual related to any other entity by reason of ownership, employment, or common officers, directors or stockholders? ☐ Yes ☒ No

If "Yes," identify the name and address of each entity related to the applicant or its qualifying individual; the relationship or affiliation to applicant or qualifying individual and the type of business in which such entity is engaged.

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PART F**CERTIFICATIONS****SOLE PROPRIETORSHIPS ONLY**

I, NA, _____, certify under penalty of perjury
(NAME OF SOLE PROPRIETOR)

under the laws of the United States, that I have not been convicted after September 1, 1989, of any Federal or State offense involving the distribution or possession of a controlled substance, or that if I have been so convicted, I am not ineligible to receive Federal benefits, either by court order or operation of law, pursuant to 21 U.S.C. 862.

Signature of Sole Proprietor

Date

ALL APPLICANTS INCLUDING SOLE PROPRIETORS

I certify that I have received and read a copy of the Commission's ocean transportation intermediary regulations, 46 C.F.R. Part 515, and pertinent sections of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998 and the Coast Guard Authorization Act of 1998 (46 U.S.C. app. 1701 et. seq.), governing the licensing of ocean transportation intermediaries, and that I will abide by all the provisions thereof from this date forward.

I further certify that I have specifically reviewed 46 C.F.R. § 515.42(h) (concerning the operations of licensees which are NVOCCs or which are related to NVOCCs) and 46 C.F.R. § 515.42(i) (concerning the operations of licensees which have a beneficial interest in merchandise exported from the United States by water or which are related to persons with a beneficial interest in merchandise exported from the United States by water).

I further certify that I shall not act as an ocean transportation intermediary as defined in section 3 of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998 and the Coast Guard Authorization Act of 1998, or perform ocean transportation intermediary services as defined in 46 C.F.R. Part 515, unless and until applicant is issued a valid ocean transportation intermediary license by the Federal Maritime Commission.

Under penalties of perjury, I declare that I have examined this application and to the best of my knowledge and belief, it is true, correct and complete.

Alan Hansen
Signature

President

2 12 2003

Title

Date

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